



Gaming (Amendment) Act 1973

1973 CHAPTER 12

An Act to extend section 40 of the Gaming Act 1968 to gaming at clubs other than members' clubs, and to amend the provisions of that section relating to the sums which may be charged for taking part in gaming.
[18th April 1973]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section 40 of the Gaming Act 1968 (which authorises the making of special charges for the right to take part in certain gaming) shall be amended in accordance with subsections (2) and (3) below.

Amendment
of s. 40 of
Gaming
Act 1968.
1968 c. 65.

(2) In subsection (1)(a) (under which the gaming must be carried on as an activity of a members' club or a miners' welfare institute), the word "members" is hereby repealed; and (consequently) in subsection (4), paragraph (a) and the word "members" preceding that paragraph are hereby repealed.

(3) In subsection (2) (under which the charge on any one day may not exceed 2½p. or such other sum as the Secretary of State may by order specify)—

(a) after the words "the charge" there shall be inserted the words "or (if more than one) the aggregate amount of the charges", and

(b) the following paragraph shall be added at the end—

“The power of the Secretary of State under this subsection includes power to specify—

(a) in the case of gaming carried on as an activity of a members' club or a miners' welfare institute, a sum different from that applicable in the case of gaming carried on as an activity of any other club; and

(b) in the case of gaming which consists exclusively of playing bridge or whist, or bridge and whist, and takes place on a day on which the premises used therefor are not used for any other gaming, or for any other gaming except gaming by means of a machine to which Part III of this Act applies, a sum greater than that applicable in all other cases.”

Short title.

2. This Act may be cited as the Gaming (Amendment) Act 1973.